

HOUSE No. 5340

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, April 9, 2026.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by resolve, House, No. 559) of Mindy Domb and Priscila S. Sousa for an investigation and study by a special commission (including members of the General Court) relative to the consumer impacts of electronic textbooks, reports recommending that the accompanying resolve (House, No. 5340) ought to pass.

For the committee,

TACKEY CHAN.

HOUSE No. 5340

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**In the One Hundred and Ninety-Fourth General Court
(2025-2026)**

Resolve providing for an investigation and study by a special commission relative to the consumer impacts of electronic textbooks.

1 **Resolved**, that a special commission is hereby established pursuant to section 2A of
2 chapter 4 of the General Laws for the purposes of an investigation and study of the consumer
3 impacts of electronic textbooks, including, but not limited to, the following: (1) identifying the
4 potential benefits and disadvantages of electronic textbooks to student consumers; (2) identifying
5 the methods used to determine pricing, resale, content sharing, including single-user limited
6 access models, and the rental of electronic textbooks; (3) examining and evaluating consumer
7 alternatives, including print materials; (4) identifying the ways in which electronic textbook
8 contracts with institutions affect consumer choice in accessing educational materials, as well as
9 evaluating the clarity of said contracts; (5) evaluating the effects of participation quotas and
10 institutional incentives, reimbursements, and other methods used in electronic textbook
11 contracts; and (6) examining and considering the findings in recent studies and reports which
12 review and analyze affordable access programs for course materials.

13 The commission shall consist of: the commissioner of higher education or a designee
14 with expertise in electronic and open educational resources, who shall serve as chair; and 12

persons appointed by the governor, 1 of whom shall be a representative of a student advocacy group, 1 of whom shall be a representative of a Massachusetts public university library who has experience with and knowledge of electronic textbooks and open educational resources, 1 of whom shall be a representative of a Massachusetts community college library who has experience with and knowledge of electronic textbooks and open educational resources, 1 of whom shall be a representative of a Massachusetts state university library who has experience with and knowledge of electronic textbooks and open educational resources, 1 of whom shall be a faculty member from a Massachusetts public university who has educator experience with using electronic textbooks or open educational resources, 1 of whom shall be a faculty member from a Massachusetts community college who has educator experience with using electronic textbooks or open educational resources, 1 of whom shall be a faculty member from a Massachusetts state university who has educator experience with using electronic textbooks or open educational resources, 1 of whom shall be a design professional from the electronic textbook industry, 1 of whom shall be a marketing professional from a global education publishing or technology company, 1 of whom shall be a representative of a national association representing the higher education textbook publishing industry, 1 of whom shall be a representative from a national association representing higher education bookstores in the commonwealth, and 1 of whom shall be a representative from a higher education-based financial aid office or basic needs office who is knowledgeable in college affordability and student financial challenges; and 1 member of the house of representatives appointed by the speaker of the house of representatives; and 1 member of the senate appointed by the senate president.

The commission shall convene its first meeting no later than 90 days after the resolve's enactment. The commission shall meet as often as needed to complete its report.

38 The commission shall report to the clerks of the house of representatives and senate, the
39 joint committee on consumer protection and professional licensure, and the joint committee on
40 higher education the results of its investigation and its recommendations, together with drafts of
41 proposed legislation or regulations necessary to carry out its recommendations no later than
42 December 31, 2028.